Strata abandoned goods

nsw.gov.au/housing-and-construction/strata/living/abandoned-goodsPrinted: 24 January 2022

What to do if something has been left behind or dumped.

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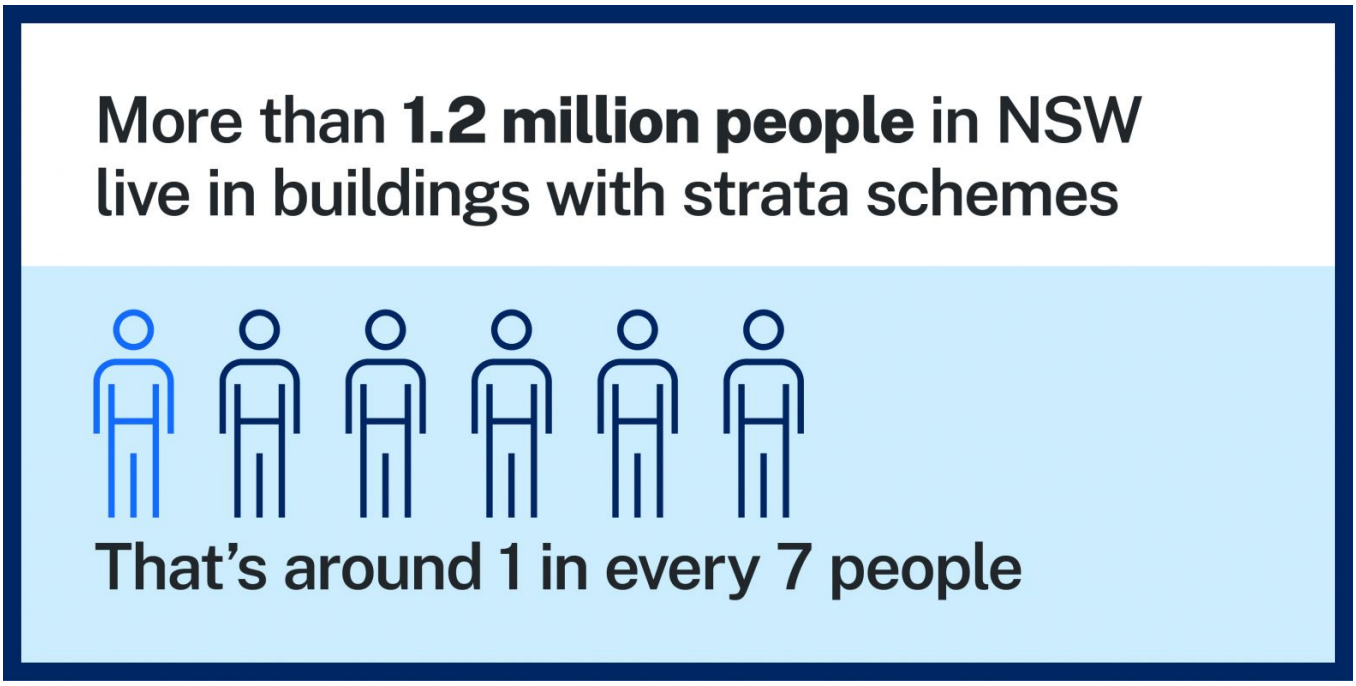
Key information

- The strata committee has the power to remove items that are abandoned. They usually give this job to the strata manager or building manager.
- Abandoned goods include items left behind by a previous owner or tenant but can also be items left behind by people who don't live in your complex
- How long you need to wait before getting rid of abandoned goods depends on the estimated value.
- Any owner who believes there are abandoned goods on common property should contact their strata manager or strata committee.

Did you know?



Disposing of abandoned goods

Abandoned goods are also called ‘uncollected goods’. Abandoned goods still belong to the owner of the goods, so you must follow certain rules before you get rid of them.

The strata committee has the power to remove items that are abandoned. They usually give this job to the strata manager or building manager.

In most situations, if they want to remove the goods they must first make an effort to find the owner and let them know. They can let the owner of the goods know in person, by letter or by email (depending on the type of good), using what's called a ‘disposal notice’.

The owners corporation should make a reasonable effort to find and contact the owner to give them the notice.

Common questions

- **How to know who my strata manager is? (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-managers)**
- **How do I contact the strata committee? (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-committee)**
- **Difference between a strata manager and a building manager (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-difference-between-a-strata-manager-building-manager-and-property-manager)**

Some examples of what to do

Rubbish, food, or plants

No notice is required and you can dispose of the material in any appropriate manner.

Personal documents

You must notify the owner of the goods in writing and wait at least 28 days.

If you cannot return the papers to the owner, you can securely destroy them.

What are personal documents?

Personal documents are items that may have a very low or no resale value but may be important to the owner.

They include:

official documents, for example licenses, certificates and passports
employment documents, for example references
financial documents
medical and legal documents, for example prescriptions and wills
photos and other keepsakes.

Value less than $1000

You must notify the owner of the goods in writing or verbally and wait at least 14 days.

If they do not retrieve their property, you can dispose of it in any appropriate manner.

Value between $1000 and $20,000

You must notify the owner of the goods in writing and wait at least 28 days.

If they do not retrieve their property, you can dispose of it via a public auction or private sale for a fair value.

Value over $20,000

For property valued over $20,000, you must get an order from the
NSW Civil and Administrative Tribunal
(https://www.ncat.nsw.gov.au/ncat/case-types/housing-and-property/strata-and-community-living/strata-schemes.html)
.

The order will tell you how to notify the owner, how long to wait for a reply and what method of disposal is appropriate.

Abandoned cars

You can only get rid of an abandoned car or other vehicle if you have proof that it's not stolen.

To get proof that a car isn't a stolen, you will need:

> a certificate from the Commissioner of Police, and
> a written search result from the Personal Property Securities Register.

Contact your local police to ask how to get these documents.

After you've got the certificate and the search results to prove the car isn't stolen, you can get rid of the car by following the rules for uncollected goods.

Uncollected cars can be moved or stored until time of disposal.

What should be in a disposal notice?

Items on common property can be moved and stored elsewhere before disposal. However, the owner of the goods must be given notice before you get rid of the goods.

The written notice must include:

- the name of a someone on the owners corporation
- a description of the goods
- an address where the owner can collect the goods
- a statement of any costs for removal, storage, maintenance or similar and if money will be taken out of the sale of the goods to cover this
- a statement that unless the goods are collected and charges paid, they will be sold or kept or destroyed after a given date

The owners corporation should make a reasonable effort to find the owner. If the owner cannot be found, the owners corporation should move the goods into storage and prominently display a notice of disposal of the goods on common property.

What can't be disposed of

Items include:

- lost or abandoned pets
- goods left with a storage company

- money that belongs to people who cannot be found.

If any of these or other items are left uncollected or abandoned on common property, you can let your strata manager or strata committee know about it so they can manage it.

Local council bulk waste collection

Did you know that many local councils in NSW offer a bulk waste kerbside collection or on-demand waste collection? They collect items too big for your kerbside bins, such as mattresses, old furniture, and broken appliances.

Find out more from **your local council (https://www.olg.nsw.gov.au/public/find-my-council/)**.

Disputes

Contact the **NSW Civil and Administrative Tribunal (https://ncat.nsw.gov.au/ncat/case-types/consumers-and-businesses/uncollected-goods.html)** if there is a dispute about uncollected goods.

Fair Trading's page on **uncollected goods (https://www.fairtrading.nsw.gov.au/trades-and-businesses/business-essentials/selling-goods-and-services/uncollected-goods)** also has more information.

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:**13 32 20 (https://www.nsw.gov.au/tel:13 32 20)**8:30am to 5pm, Monday-Friday
In person:**Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)**

Related information

Popular pages

Rules for living in strata (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws)

Understand the by-laws where you live, how to change them, and what to do if there's a breach in the by-laws.

→

Who's who in strata (https://www.nsw.gov.au/housing-and-construction/strata/roles)

People must work together to keep a strata scheme running smoothly. Understand the roles of the owners corporation, strata committee, strata manager and building manager.

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Disputes and complaints (https://www.nsw.gov.au/housing-and-construction/strata/disputes)

Learn how disputes between owners, or residents or complaints against strata managers and other workers can be resolved.

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Helpful links

- **Fair Trading - Uncollected goods → (https://www.fairtrading.nsw.gov.au/trades-and-businesses/business-essentials/selling-goods-and-services/uncollected-goods)**
- **Find your local council → (https://www.olg.nsw.gov.au/public/find-my-council/)**

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Sign up to the Strata and community scheme updates newsletter (https://www.fairtrading.nsw.gov.au/subscribe)